

Court No. - 3

Case :- WRIT - C No. - 15634 of 2022

Petitioner :- Mahesh Dutt Sharma

Respondent :- Pakshimanchal Vidyut Vitran Nigam Ltd.

Counsel for Petitioner :- Vishal Agarwal

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard learned counsels for the parties.

This writ petition has been filed praying for the following relief:

"a) Issue a writ order or direction in the nature of mandamus directing the respondent and his subordinates to forthwith reinstate electric connection to the petitioner."

Sri N.K. Tiwari, learned counsel for the respondent / Power Distribution Corporation, states that the petitioner has already filed a civil suit being O.S. No. 344 of 2021 in the Court of the Civil Judge (Junior Division), Saharanpur seeking a mandatory injunction for correction of his electricity Bill and for availing the benefit of O.T.S. Scheme and, therefore, this writ petition is not maintainable.

On perusal of the record, the objection of the learned counsel for the respondent appears to be correct. The plaint of the aforesaid suit has been enclosed by the petitioner as Annexure No.3.

Since the petitioner is already pursuing a remedy, no interference is called for in this writ petition and it is accordingly, **dismissed**.

It is open for the petitioner to pursue the civil suit or seek appropriate remedy under the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 as advised by his counsel.

Order Date :- 4.7.2022

sfa/